

Armed Police Force Act, 2001

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Amending Acts

1. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.10.7
2. Some Nepal Acts Amendment Act, 2072 2072.11.13
3. Some Nepal Laws Amendment, Consolidation, Adjustment and Repeal Act, 2074 2074.6.30

Act No. 3 of the year 2058

An Act made to provide for the formation and operation of the Armed Police Force, Nepal

Preamble: Whereas it is desirable to make provision for the formation and operation of the Armed Police Force in order to maintain peace and order and protect the life, property and freedom of the people in omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. Nepal,

This Act is made by the Parliament in the first year of the reign of His Majesty King Gyanendra Bir Bikram Shah Dev. Chapter-1

Preliminary

1. Short title and commencement: (1) This Act may be called the "Armed Police Act, 2058".
 - (2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-
 - (a) "National Security Council" means the National Security Council pursuant to Article 266 of the Constitution of Nepal amended by the Some Nepal Acts Amendment Act, 2072.
 - (b) "Central Security Committee" means the Central Security Committee pursuant to Section 7.
 - (c) "Armed Police Service" means the service under the amended by the Some Nepal Acts Amendment Act, 2072.
- Armed Police Force, Nepal formed pursuant to Section 3.
- (d) "Armed Police" means a person appointed in the Armed Police Service.
 - (e) "Armed Police Officer" means an Armed Police Officer of the rank of Armed Police Assistant Inspector and above.
 - (f) "Gazetted Officer" means an Armed Police Officer of the rank of Armed Police Inspector and above.
 - (g) "Commission" means the Armed Police Service Commission formed pursuant to Section 11.

(h) ?Appointing Authority? means the officer authorized to make appointment pursuant to Section 13.

(i) ?Other Police? means the police under the Police Act, 2012.

(j) ?Armed Police Special Court? means the Armed Police Special Court formed pursuant to Section 28 or Section 29.

(k) ?Armed Rebellion? means an act carried out by any person using weapons with the intention of creating any disorder to disrupt the sovereignty, amended by the Some Nepal Acts Amendment Act, 2072. territorial integrity, relations between federal units, or national unity of the State of Nepal, or to overthrow the authority of Nepal omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066., or to cause obstruction or opposition to the functioning of Nepal omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066., as amended by the Republic Strengthening and Some Nepal Laws (Amendment) Act, 2066.

(l) ?Prescribed? or ?as prescribed? means prescribed or as prescribed in the rules made under this Act. Chapter-2

Amended by the Some Nepal Acts Amendment Act, 2072. Formation and Operation of the Armed Police Force, Nepal

3. Formation of the Armed Police Force, Nepal: Amended by the Some Nepal Acts Amendment Act, 2072. (1) An Armed Police Force, Nepal is formed in Nepal omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066..

(2) The number of posts of Armed Police in the amended by the Some Nepal Acts Amendment Act, 2072. Armed Police Force, Nepal formed pursuant to Sub-section (1) shall be as prescribed by the Government of Nepal.

(3) The Inspector General of Armed Police shall be the chief of the amended by the Some Nepal Acts Amendment Act, 2072. Armed Police Force, Nepal.

(4) Amended by the Some Nepal Acts Amendment Act, 2072. The headquarters of the Armed Police Force, Nepal shall be in Kathmandu Valley and subordinate offices shall be as prescribed. 4.

6. Operation of Armed Police: (1) The Government of Nepal shall operate the Armed Police for the purpose of performing the following functions:-

(a) to control an armed conflict occurring or likely to occur in any part of Nepal omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.,

(b) to control an armed rebellion or separatist activity occurring or likely to occur in any part of Nepal omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.,

(c) to control terrorist activity occurring or likely to occur in any part of Nepal omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.,

(d) to control riots occurring or likely to occur in any part of Nepal omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.,

(e) to assist in the rescue of victims of natural calamity and epidemic occurring or likely to occur in any part of Nepal omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.,

(f) to rescue a kidnapped person or to control any heinous and grave crime or grave unrest occurring or likely to occur, if any citizen of Nepal omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. or any other person is kidnapped,

(g) to guard the border of Nepal omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.,

(h) to assist, remaining under the command of the Nepali Army, in case of external attack,

(i) to provide security to buildings, structures and other sites of public importance as designated by the Government of Nepal,

(j) to provide security to persons and prescribed institutions etc. that the Government of Nepal decides to protect,

(k) to perform functions mentioned in this Act and rules made under this Act or prescribed under other prevailing laws,

(l) to perform other functions as prescribed by the Government of Nepal from time to time.

(2) Where the Armed Police are operated in any part of Nepal omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. pursuant to Sub-section (1), the Government of Nepal shall, at least once, inform the National Security Council and the Central Security Committee regarding the number of Armed Police so operated in that area and the work being performed by them.

(3) The power vested in the Government of Nepal pursuant to Sub-section (1) may be delegated by the Government of Nepal to any authority of a specific class subordinate to it as necessary.

(4) Where the authority obtaining power pursuant to Sub-section (3) operates the Armed Police in any part of Nepal omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066., such authority shall, at least once a week, inform the Government of Nepal regarding the number of Armed Police so operated in that area and the work being performed by them.

(5) The information received pursuant to Sub-section (4) shall be furnished by the Government of Nepal to the National Security Council and the Central Security Committee.

7. Central Security Committee: (1) For the purpose of Sub-section (1) of Section 6, there shall be a Central Security Committee consisting of the following Chairperson and members to provide necessary suggestions to the Government of Nepal:-

(a) Minister or Minister of State for Home Affairs ? Chairperson

(b) Chief of Army Staff, Nepali Army ? Member

(c) Secretary, Ministry of Defence ? Member

(d) Secretary, Ministry of Home Affairs ? Member

(e) Inspector General of Police ? Member

(f) Inspector General of Armed Police ? Member

(g) Chief, National Investigation Department ? Member

(h) Joint Secretary, Ministry of Home Affairs ? Member-Secretary

(2) Other concerned authorities may be invited to the meeting of the Central Security Committee as necessary. 8. To Remain Under the Control of Nepali Army: In a situation where the Royal Nepali Army is

mobilized for the purpose of maintaining peace and order in any part of Nepal omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066., the Armed Police of the concerned place shall remain under the control of the Nepali Army for the duration of the mobilization of the Nepali Army. Chapter-3
Conditions of Service

9. Posts and Tenure of Service: (1) In the Armed Police Service, there shall be the posts of Inspector General of Armed Police and other posts as prescribed.

(2) The tenure of the Inspector General of Armed Police shall be four years and the tenure of other Gazetted Officers shall be as prescribed according to necessity. 10. Recruitment: Recruitment to the Armed Police Service shall be as prescribed. 11. Armed Police Service Commission: (1) For the purpose of making recommendations to the Appointing Authority for appointment to posts to be filled by open competition in the Armed Police Service, an Armed Police Service Commission shall be formed consisting of the following Chairperson and members:-

(a) Chairperson of the Public Service Commission or a member of the Public Service Commission designated by him/her ? Chairperson

(b) A person designated by the Government of Nepal from among the officers of special class serving in the service of the Government of Nepal ? Member

(c) Secretary, Ministry of Home Affairs ? Member

(d) Representative (Special Class), Nepali Army ? Member

(e) Inspector General of Armed Police ? Member-Secretary

(2) The tenure of the Chairperson and members of the Commission shall be four years and they shall be eligible for reappointment.

(3) Provision relating to the remuneration, conditions of service and facilities of the Chairperson and members of the Commission shall be as prescribed.

(4) The Commission shall examine the suitability of candidates according to the procedure and basis determined by it and recommend to the Appointing Authority for appointment.

Added by the Some Nepal Acts Amendment Act, 2072.(4a) Notwithstanding anything contained in Sub-section (4), the written examination to be taken for recruitment shall be conducted by the Public Service Commission.

(5) The Commission shall determine its own procedures.

(6) Other functions, duties and powers of the Commission shall be as prescribed.

(7) The Commission may, subject to prescribed conditions, delegate any of its functions, duties and powers to any of its members or to an employee of the Government of Nepal for exercise and performance. 12. Appointment on Commission's Recommendation: Appointment to posts to be filled by open competition in the Armed Police Service shall be made on the recommendation of the Commission. 13. Appointing Authority: Appointment of Gazetted Officers shall be made by the Government of Nepal and appointment of other Armed Police shall be made by the prescribed officer. 14. Qualifications Required for Candidacy: The minimum educational qualification and other qualifications required for candidacy for a post in the Armed Police Service to be filled by open competition shall be as prescribed. 15. Transfer and Promotion: Transfer

and promotion of Armed Police shall be as prescribed. 16. Power to Transfer: (1) Notwithstanding anything contained elsewhere in this Chapter, until the formation of the Commission, the Government of Nepal may transfer and post serving soldiers of the Nepali Army and serving police of other police service to the Armed Police Service, and the service of such soldiers and other police so posted in the Armed Police Service shall be counted in the Armed Police Service.

(2) No Armed Police shall be transferred to the Nepali Army or other police service, and after the formation of the Commission, no soldier of the Nepali Army or police of other police service shall be transferred to the Armed Police Service. 17. Taking Oath: Every Armed Police appointed for the first time shall, before assuming office, take an oath in the format as prescribed. 18. Continuation of Tenure of Post: The tenure of a post of an Armed Police above his/her own post shall continue in the following circumstances:-

- (a) as long as he/she performs work in his/her own post,
- (b) during the period allowed to assume office upon transfer,
- (c) during the period he/she is on leave,
- (d) during the period he/she is under suspension,
- (e) during the period he/she performs work designated by the Government of Nepal,
- (f) during the period he/she works in an acting capacity in another post. 19.

Departmental Action, Punishment and Appeal: (1) If an Armed Police, while performing his/her duty, shows carelessness or negligence, or makes any excuse to avoid performing any duty, or is incapable of performing his/her duty, or commits a breach of discipline, or engages in any prescribed misconduct, or fails to perform the duty under Section 24, or commits an offense under Section 27, or in other prescribed circumstances, such Armed Police may be dismissed from service with a finding of being disqualified for future government service, or removed from service without a finding of being disqualified for future government service, or given other departmental punishment as prescribed, according to the gravity of the offense. (2) The authority to order departmental punishment to an Armed Police shall vest in the Appointing Authority. (3) Without prejudice to the generality of the power given by Sub-section (1), the officer authorized to order departmental punishment to an Armed Police shall be as prescribed. (4) While ordering punishment under Sub-section (1), the officer authorized to order departmental punishment under Sub-section (2) or (3) shall prepare and sign a note containing the charge with reasons and grounds for the order of punishment, details of the inquiry conducted in that regard, the accused's claim of defense if he/she was given an opportunity of defense, and if further inquiry was made according to that claim, then the officer's opinion and finding thereon, and if the opportunity of defense was not given, the reason, ground and circumstance why giving such opportunity was not reasonable, and shall keep it in the case file. (5) An appeal against an order of departmental punishment given to an Armed Police shall lie to the prescribed officer. 20. Power to Suspend: (1) An Armed Police who is under departmental action under Section 19 may be suspended by the officer authorized to order punishment for a prescribed period. (2) Before suspension under Sub-section (1), the officer authorized to order punishment shall disarm such Armed Police. (3) An Armed Police shall be deemed to be automatically suspended in the following circumstances:- (a) from the date of arrest if the Armed Police accused of an offense under Section 27 is arrested, or from the date of decision to file a case if not arrested, (b) during the period of detention if arrested and detained on a criminal charge. (4) If an Armed Police is suspended in relation to government work or as a result of action taken on behalf of the Government of Nepal, he/she shall receive only half of the salary he/she was drawing during the period of such suspension.

Provided that, if the accused is acquitted without the charge being proved, he/she shall receive full salary (including any increment if applicable) after deducting the half salary if already paid, or the full salary if not

paid. If found guilty, he/she shall not receive the remaining salary from the date of suspension.

(5) If an Armed Police remains suspended for any reason other than those mentioned in Sub-section (4), he/she shall not receive any salary for the period of such suspension. 21. Protection Against Arbitrary Dismissal Etc.: When imposing a departmental punishment on an Armed Police, an opportunity of defense shall be given by fixing a reasonable period to show cause why such punishment should not be imposed, except in the following circumstances:-

(a) if convicted by a court and sentenced to imprisonment on a criminal charge involving moral turpitude,

(b) if convicted of an offense under Section 27 and sentenced to imprisonment, or

(c) if the officer imposing punishment has prepared a note stating the reason and grounds why giving an opportunity of defense is not reasonable. 22. No Bar to Prosecution: If an Armed Police commits an offense punishable under this Act or other prevailing laws, merely on the ground that departmental action or punishment has been taken against him/her under Section 19, he/she shall not be deemed to be barred from being prosecuted and punished under this Act or other prevailing laws. 23. Salary, Allowances and Other Facilities and Other Conditions of Service: The salary, allowances and other facilities and other conditions of service of the Armed Police shall be as prescribed. Chapter-4

Duties and Powers of the Armed Police

24.

24.

Duties and Powers of the Armed Police: (1) The duties and powers of the Armed Police shall be as follows:-

(a) Every Armed Police shall be deemed to be always on duty and shall, at any time, proceed to the place assigned and fulfill his/her responsibility. (b) Orders of Armed Police of higher rank shall be promptly obeyed.

(c) Every Armed Police shall remain conscious and vigilant towards the work entrusted to him/her or his/her team. (d) It shall be the duty of the Armed Police to perform other functions mentioned in this Act and the rules made under this Act and as required of him/her under other prevailing laws. (2) If an Armed Police Officer has sufficient and reasonable grounds to suspect that there is a person involved in an offense or an object prohibited under prevailing laws in any house, place or vehicle within the area where he/she is assigned, he/she may, in accordance with prevailing laws, search such house, place or vehicle and arrest the person involved in criminal activities and hand over to the local other police as soon as possible. 25. Power of Armed Police of Higher Rank: The authority received by an Armed Police under this Act or the rules made under this Act may be exercised by an Armed Police of higher rank in the area where he/she is assigned. 26. Protection for Act Done in Good Faith: No Armed Police shall be liable to punishment for any act done in good faith while performing his/her duty or exercising his/her authority under this Act and the rules made under this Act. Chapter-5 Offenses and Punishment 27. Offenses Punishable with Imprisonment: (1) An Armed Police who commits the following offenses shall be punished with amended by the Some Nepal Laws Amendment, Consolidation, Adjustment and Repeal Act, 2074. life imprisonment:- (a) if he/she participates in an armed rebellion, (b) if he/she does or causes to be done any act by writing, speaking, or by signs or in any other manner that may cause hatred, enmity or contempt likely to disrupt the sovereignty or territorial integrity, national independence of amended by the Some Nepal Acts Amendment Act, 2072.

(c) if he/she sells or transfers in any manner any government or any person's weapon or ammunition under his/her responsibility,

(d) if he/she runs away with weapons or ammunition taken for his/her use or kept under his/her responsibility,

(e) if he/she directly or indirectly assists terrorist activities,

Nepal, or the good relations between federal units or various castes, ethnic groups, religions, sects,

(c) if he/she sells or transfers in any manner any government or any person's weapon or ammunition under his/her responsibility,

(d) if he/she runs away with weapons or ammunition taken for his/her use or kept under his/her responsibility,

(e) if he/she directly or indirectly assists terrorist activities,

Nepal, or the good relations between federal units or various castes, ethnic groups, religions, sects,

(c) if he/she sells or transfers in any manner any government or any person's weapon or ammunition under his/her responsibility,

(d) if he/she runs away with weapons or ammunition taken for his/her use or kept under his/her responsibility,

(e) if he/she directly or indirectly assists terrorist activities,

(f) if he/she provides or attempts to provide or abets any other person to provide information or news related to security to unauthorized national or international persons, institutions or groups.

(2) An Armed Police who commits the following offenses shall be punished with imprisonment for a term of seven years to twelve years:-

(a) if he/she attempts to commit an armed rebellion,

(b) if he/she creates a riot in a building, structure or site of public importance, office or any other place where he/she is assigned or which he/she is required to protect, or if he/she shows cowardice and flees while attackers are attacking,

(c) if he/she breaks, damages or loots property in any manner, or causes loss, damage or injury to any house or place with the intention of looting.

(3) An Armed Police who commits the following offenses shall be punished with imprisonment for a term of five years to seven years:-

(a) if he/she uses or attempts to use criminal force against an Armed Police of higher rank or other authorized officer related to security, knowing or having reasonable grounds to know that such person is of higher rank or an authorized officer, whether on duty or not,

(b) if he/she, despite knowing about a conspiracy or attempt to commit an armed rebellion, fails to provide information or news as soon as possible to a higher-ranking or senior officer,

(c) if he/she does or causes to be done any act by writing, or by words or by signs and symbols that may cause hatred, enmity or contempt likely to disrupt the Government of Nepal or its work,

(d) if he/she knowingly allows a prisoner or detainee under his/her responsibility to escape or absconds.

(4) An Armed Police who commits the following offenses shall be punished with imprisonment for a term of three years to five years:-

(a) if he/she fails to obey an order given by an Armed Police of higher rank,

(b) if he/she knowingly submits a false report about the number or condition of persons under his/her responsibility or command, or about cash or kind,

(c) if he/she becomes a member of any political organization or party, or participates in a rally or demonstration organized for political purposes,

(d) if he/she misuses, carelessly loses, damages or breaks weapons, ammunition, vehicles, cash or goods under his/her responsibility,

(e) if he/she runs away with government property or goods under his/her responsibility,

(f) if he/she forcibly takes another's property or goods,

(g) if he/she contributes to disrupting religious and social harmony of the country,

(h) if he/she deserts from the service of the amended by the Some Nepal Acts Amendment Act, 2072.

Armed Police Force, Nepal,

(i) if he/she resigns without the permission of the officer authorized to appoint him/her, or abandons the performance of the duties of his/her post. Chapter-6

Armed Police Special Court and Appeal

28. Formation of Armed Police Special Court: (1) For the purpose of conducting initial proceedings and adjudication of cases relating to offenses punishable under Chapter-5, the Government of Nepal shall, by publishing a notice in the Nepal Gazette, form one Armed Police Special Court.

(2) The seat of the Armed Police Special Court formed pursuant to Sub-section (1) shall be in Kathmandu Valley.

(3) The Armed Police Special Court formed pursuant to Sub-section (1) shall consist of three members: an officer of the special class of the Judicial Service as chairperson, one police officer of at least the rank of Deputy Inspector General of Police from the Armed Police Service, and one officer of at least the rank of Joint Secretary from the Ministry of Home Affairs or under it. 29. Arrest and Detention: (1) An Armed Police accused of any offense under Chapter-5 may be arrested and detained on the order of any Armed Police Officer of a rank higher than him/her.

(2) Before being detained under Sub-section (1), such Armed Police shall be disarmed.

(3) If an Armed Police is arrested and detained under Sub-section (1), information thereof shall be given as soon as possible to the head of the office where the accused is working and to the Inspector General of Armed Police. 30. Provision for Taking Statement and Examining Evidence: (1) The Armed Police Special Court shall take the statement of the accused related to the case and keep it in the case file.

(2) If any documentary evidence needs to be examined during the hearing of the case, the Armed Police Special Court may order the concerned body or officer to submit such evidence, and such body or officer shall submit the requested documentary evidence within the specified time.

(3) If it appears necessary to examine any witness during the hearing of the case, the Armed Police Special Court may summon and examine such witness. Provided that, if the Armed Police Special Court considers that summoning the witness to be examined would cause unnecessary delay or expense or inconvenience, it may order the Chief District Officer of the district where the witness resides or stays to examine the witness by way of commission and send the record.

(4) Other procedures of the Armed Police Special Court shall be as prescribed. 31. Period for Adjudication of Case: The Armed Police Special Court shall ordinarily conclude the case within ninety days from the date of examining witnesses in the case. 32.

Provision Relating to Custody and Prison: If the accused needs to be kept in custody pending trial or kept in prison pursuant to the verdict, as per the order of the Armed Police Special Court, the Government of Nepal may send him/her to be imprisoned in any prison of Nepal omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066.. 33. Provision Relating to Appeal: A person aggrieved by the decision of the Armed Police Special Court may appeal to the concerned amended by the Some Nepal Acts Amendment Act, 2072. High Court within thirty-five days. 34. Coordination Committee: (1) For bringing harmony and coordination between the Armed Police and other police organizations in the work of maintaining peace and order within Nepal omitted by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066., there shall be a Coordination Committee at the center consisting of the Secretary of the Ministry of Home Affairs as coordinator and the Inspector General of Police and the Inspector General of Armed Police as members. (2) For the purpose of Sub-section (1), there may also be a Coordination Committee at the regional and district levels consisting of such office bearers as prescribed. (3) The Coordination Committee under Sub-sections (1) and (2) shall regulate its own procedures. 35. Delegation of Power: An authority having power under this Act or the rules made under this Act may delegate the power so vested to an officer subordinate to him/her under his/her responsibility. 36. Power to Make Rules: The Government of Nepal may make necessary rules for the purpose of implementing this Act. 37. Saving: (1) Notwithstanding anything contained in prevailing laws, matters provided for in this Act shall be governed by this Act. (2) Any act or

action performed under the Armed Police Ordinance, 2073 promulgated on 2073 Magh 9 shall be deemed to have been performed under this Act. 38. Effect of Expiration of the Armed Police Ordinance, 2073: After the expiration of the Armed Police Ordinance, 2073, unless a different intention appears, such expiration shall not,- (a) revive anything not in force or existing at the time of such expiration, (b) affect any matter in force under that Ordinance or any